FIM Terms of Use

Last updated: July 27, 2026

Welcome to FIM (File Integrity Monitoring), developed by **Achiefs, LLC**.

These Terms of Use ("Terms") govern the access and use of FIM, the file integrity monitoring software developed by Achiefs, LLC. By installing, executing, or using FIM, you accept these Terms in their entirety. If you do not agree with any part of these Terms, you must not install or use the software.

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1. Acceptance of Terms

By downloading, installing, executing, or using the FIM software (hereinafter, the "Software"), you agree to be bound by these Terms of Use. If you act on behalf of a company or organization, you represent that you have the authority to bind such organization to these Terms.

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2. Software Description

FIM is a file integrity monitoring tool written in Rust. Its purpose is to watch specific directories and files, detecting changes in content, metadata, permissions, ownership, and attributes, and recording modification events for later analysis.

The Software is distributed under the terms of the **GNU General Public License version 3 (GPL v3)**. Refer to the `LICENSE` file included with the Software distribution for the exact terms of the open source license.

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3. Usage Rights

Subject to the GPL v3 license and these Terms, Achiefs, LLC grants you a non-exclusive, non-transferable, and revocable (as provided by the license) right to:

- Install and run the Software on one or more systems.
- Use the Software to monitor file integrity.
- Modify the source code in accordance with the terms of GPL v3.

- Distribute copies of the Software as permitted by GPL v3.

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4. Restrictions

By using FIM, you agree to:

1. **Not use the Software for illegal purposes**, including but not limited to: violating data protection laws, accessing systems without authorization, or circumventing security measures.
2. **Not remove or modify** ownership notices, copyright marks, or license notes in the Software.
3. **Not use the Software** to carry out activities that may damage, disable, overload, or impair third-party systems.
4. **Comply with all applicable laws**, including data protection regulations (GDPR in the European Union, LOPDGDD in Spain, and equivalent laws).
5. **Be responsible for the use you make of the Software**, including the collection, storage, and processing of data it may generate, since FIM can record information about system files and processes.

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5. Intellectual Property

The Software and all related intellectual property rights (including but not limited to copyrights, trademarks, and know-how) are owned by Achiefs, LLC or its licensors. The GPL v3 license grants specific permissions but does not transfer ownership of the Software.

"FIM" and "Achiefs" are trademarks of Achiefs, LLC. Their use is subject to applicable trademark laws.

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6. Privacy and Data Protection

6.1 Local data collection

FIM operates locally on the user's system and processes file monitoring data exclusively in the local environment, unless the user explicitly configures integration with an external service (ElasticSearch, OpenSearch, Wazuh, etc.).

6.2 User responsibility

As the operator of the Software, you are responsible for: - Ensuring that file monitoring complies with applicable privacy and data protection laws. - Properly informing individuals whose data may be processed by the Software. - Implementing appropriate technical and organizational measures for data protection.

6.3 Third-party integrations

When FIM is configured to send events to third-party services (e.g., ElasticSearch, OpenSearch, Wazuh), you are responsible for managing the corresponding data protection obligations for such integrations, including the execution of any required data processing agreements.

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7. Support and Updates

7.1 Technical support

Technical support is provided through the channels indicated in the official documentation:

- **Email:** support@achiefs.com
- **Slack:** FIM Slack Workspace
- **Documentation:** documentation.achiefs.com

Standard support is provided "as available" and does not constitute a response time guarantee. For access to premium support, see the Terms of Service.

7.2 Updates

Achiefs, LLC reserves the right to release updates, patches, and new versions of the Software. These updates are subject to the same Terms and the GPL v3 license. Achiefs, LLC does not guarantee continued availability or compatibility of future versions.

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8. Disclaimer of Warranties

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9. Limitation of Liability

IN NO EVENT SHALL ACHIEFS, LLC, ITS DEVELOPERS, OR CONTRIBUTORS BE LIABLE FOR ANY DIRECT, INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES (INCLUDING BUT NOT LIMITED TO DAMAGES FOR DATA LOSS, BUSINESS INTERRUPTION, OR FINANCIAL LOSS) ARISING FROM THE USE OR INABILITY TO USE THE SOFTWARE, EVEN IF ACHIEFS, LLC HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

THIS LIMITATION OF LIABILITY IS CONSISTENT WITH SECTION 16 OF GPL v3.

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10. Termination

The GPL v3 license establishes the conditions under which granted rights may be automatically terminated for non-compliance. In addition, Achiefs, LLC reserves the right to deny use of the Software to any person or organization that violates these Terms of Use.

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11. Governing Law and Jurisdiction

These Terms are governed by the laws of Spain. Any dispute arising from these Terms shall be submitted to the competent courts of Granada, Spain, with express waiver of any other jurisdiction that may apply.

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12. Modifications to Terms

Achiefs, LLC reserves the right to modify these Terms of Use at any time. Modifications will take effect upon publication in the project repository or official documentation. Continued use of the Software after such modifications constitutes acceptance of the updated Terms.

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13. Contact

For any inquiries related to these Terms of Use, you may contact us at:

- **Email:** support@achiefs.com
- **Repository:** github.com/Achiefs/fim